



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 19TH DAY OF APRIL, 2024

BEFORE

THE HON'BLE MR JUSTICE M.NAGAPRASANNA

WRIT PETITION NO. 11260 OF 2024 (GM-RES)

BETWEEN:

R. KRISHNAMURTHY,
S/O RANGADASAPPA,
AGED ABOUT 45 YEARS,
R/O GULIHATTI,
DODDGHATTA POST,
HOSADURGA TALUK,
CHITRADURGA DISTRICT - 577 527.

...PETITIONER

(BY SMT. PRAMILA NESARGI, SENIOR ADVOCATE FOR
SMT. KAVYASHREE G.S., ADVOCATE)

AND:

1. THE ELECTION COMMISSION OF INDIA
REP. BY ITS CHIEF ELECTION COMMISSIONER,
NIRVACHAN SADAN, ASHOKA ROAD,
NEW DELHI - 110 001.
2. THE STATE ELECTION COMMISSION OF KARNATAKA,
REP. BY ITS CHIEF ELECTORAL OFFICER,
BELLARY ROAD, SADASHIVA NAGAR,
ARAMANE NAGAR,
BENGALURU - 560 080.
3. THE RETURNING OFFICER NO.18,
CHITRADURGA (SC) PARLIAMENTARY
CONSTITUENCY, CHITRADURGA DISTRICT,
CHITRADURGA - 577 527.





4. THE DEPUTY COMMISSIONER,
BENGALURU URBAN DISTRICT,
KANDAYA BHAVAN,
K.G. ROAD,
BENGALURU - 560 009.
5. THE TAHSILDAR,
BENGALURU SOUTH TALUK,
BENGALURU - 560 009.
6. M.P. DARAKESHWARIAIAH,
S/O M. PANCHAKSHARIAIAH,
AGED MAJOR,
NOW R/O 39, M.R. LAYOUT,
RAJEEV GANDHINAGAR,
NAGASANDRA,
BENGALURU - 560 073.

...RESPONDENTS

(BY SMT. NAVYASHEKAR, AGA FOR R6;
SRI. C. JAGADISH, ADVOCATE FOR R4 AND R5;
SRI. SHARATH DODWAD, ADVOCATE FOR R1 TO R3)

THIS WP IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA PRAYING TO i) QUASH THE ACCEPTANCE OF NOMINATION BY THE R3 INsofar AS THE R6 IS CONCERNED IN RESPECT OF THE CHITRADURGA (SC) PARLIAMENTARY CONSTITUENCY NO. 018 PRODUCED AT ANNEXURE-H AND ETC.

THIS PETITION, COMING ON FOR PRELIMINARY HEARING, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

The petitioner is before this Court seeking quashment of the acceptance of the nomination and issuance of a writ



in the nature of *mandamus* to the third respondent – Returning Officer, Chitradurga (SC) Parliamentary Constituency, Chitradurga District to remove the name of respondent No.6 from the list of validly nominated candidates.

2. Heard the learned Senior Counsel Smt. Pramila Nesargi, appearing for the petitioner, learned counsel Sri. Sharath Dodwad representing respondents No.1 to 3, learned counsel Sri. C. Jagadish representing respondents No.4 and 5 and learned Additional Government Advocate, Sri. Navyashekar representing respondent No.6.

3. The sixth respondent claims to be belonging to Adi Karnataka community, a Scheduled Caste and has submitted his nomination to contest the ensuing Parliament Election from Chitradurga Constituency, Parliamentary Constituency No.18. The date on which the nomination was submitted, the sixth respondent did not suffer any disability. Therefore, the nomination of respondent No.6 belonging to Scheduled Caste candidate



was accepted by the Returning Officer on the strength of the Caste Certificate that was in his possession and its production.

4. A writ petition is presented before this Court, in W.P.No.10644/2024. The challenge in the said writ petition was to a Caste Certificate that was granted to respondent No.6 on 30.03.2019. The writ petition is filed on 08.04.2024. Notwithstanding this delay, this Court granted an interim order of stay, on the score that the petitioner who claiming to be belonging to Beda Jangama had secured a Caste Certificate from Tahasildar, Bengaluru North Taluk. The said Caste Certificate was cancelled. The cancellation of the Caste Certificate was challenged before this Court in W.P.No.15302/2023. The said Writ Petition is pending consideration.

5. Even before all these proceedings, what respondent No.6 would do is go before the Tahasildar Bengaluru South Taluk submits another application and



obtains another caste certificate of the same caste that stood cancelled earlier.

6. Therefore, this Court owing to the said circumstance had passed an order on 08.04.2024 in W.P.No.10644/2024, which reads as follows:

"Heard Smt.Kavyashree, learned counsel for the petitioner and learned Additional Government Advocate for the State.

The petitioner possesses a caste certificate that he belongs to Beda Jangama. Apart from the subject caste certificate, he had possessed identical caste certificate issued by another authority, which was cancelled by an order of the Deputy Commissioner. This is called in question in writ petition No.15302/2023.

There is a direction not to precipitate qua the caste certificate in favour of the petitioner. The respondent No.3 appears to have secured another caste certificate from another Tahsildar depicting him to be belonging to Beda Jangama.

The learned counsel appearing for the petitioner and the counsel Mr.C.Jagadeesh would submit that in the light of earlier caste certificate on the same lines being cancelled and the cancellation not being annulled by this court, the second caste certificate could not have now produced for the purpose of contesting the elections. Therefore, the respondent No.4 is restrained from making use of the caste certificate impugned in the said petition till the next date of hearing.

Mr.C.Jagadeesh, learned counsel is directed to take notice for respondent Nos.1, 2 and 4.



The respondent No.3 is served by hand summons.

List the matter on 10.04.2024 at 2.30 p.m."

(Emphasis supplied)

After the said order on 10.04.2024 on appearance of counsel representing the candidate this Court had passed the following order:

"Heard the learned Senior counsel, Smt. Pramila Nesargi appearing for the petitioner.

This Court on 08.04.2024, had passed the following order:

"Heard Smt.Kavyashree, learned counsel for the petitioner and learned Additional Government Advocate for the State.

The petitioner possesses a caste certificate that he belongs to Beda Jangama. Apart from the subject caste certificate, he had possessed identical caste certificate issued by another authority, which was cancelled by an order of the Deputy Commissioner. This is called in question in writ petition No.15302/2023.

There is a direction not to precipitate qua the caste certificate in favour of the petitioner. The respondent No.3 appears to have secured another caste certificate from another Tahsildar depicting him to be belonging to Beda Jangama.

The learned counsel appearing for the petitioner and the counsel Mr.C.Jagadeesh would submit that in the light of earlier caste certificate on the same lines being cancelled and the cancellation not being annulled by this court, the second caste certificate could not have now produced for the purpose of contesting the



elections. Therefore, the respondent No.4 is restrained from making use of the caste certificate impugned in the said petition till the next date of hearing.

Mr.C.Jagadeesh, learned counsel is directed to take notice for respondent Nos.1, 2 and 4.

The respondent No.3 is served by hand summons.

List the matter on 10.04.2024 at 2.30 p.m."

Learned counsel representing respondent No.3, Sri. Chidananda S. Mathad would seek time to file statement of objections.

Learned counsel appearing for respondent No.3 would submit that caste certificate earlier granted to him by the Bangalore South by the competent authority is annulled by the order of the Deputy Commissioner invoking power under Section 4F of the Karnataka Scheduled Castes Scheduled Tribes and other Backward Classes (Reservation of Appointment etc.,) Act, 1990.

Learned counsel would further submit that the said annulment of the caste certificate is called in question before this Court which is pending consideration in W.P.No.15302/2023.

It is admitted fact that during the pendency of the aforesaid proceedings of annulment of the earlier caste certificate, the petitioner has secured another caste certificate from Bengaluru South Taluk.

Awaiting objections of the learned counsel appearing for respondent No.3, interim order granted earlier stands continued till the next date of hearing.

Tag this petition along with W.P.No.15302/2023 and list them both on 16.04.2024 in the fresh matters list."

7. After the passage of both the orders, springs the present Petition, for it having been filed on



15.04.2024. The prayer in the present Writ Petition is for removing of the name of the respondent No.6 from the list of validly nominated candidates for Chitradurga Parliamentary constituency. The reason for presenting the Petition is the interim order granted in W.P.10644/2024 quoted *supra*.

8. Learned counsel appearing for the respondent - Election Commission, Sri. Sharath Dodwad submits that work of approving nominations and feeding it into Electronic Voting Machine is over long ago. Learned counsel would further submit that few of the categories, who are given special privilege of casting their votes from the place where they are, have already cast their votes on the list of nominated candidates. Therefore, the learned counsel would contend that in the teeth of the aforesaid facts, if this Court would now interfere and direct the change in the Electronic Voting Machine or in the list of candidates for the ensuing Election, it would cause grave jeopardy. He would further submit that the nominations



were scrutinized on 05.04.2024 and the list of validly nominated candidates was notified on 05.04.2024 itself. Learned counsel would hasten to add that the objections filed were all considered, over ruled and then final list was notified and he would submit that its too late in the day for this Court to interfere at this stage of the elections. It would be beyond the jurisdiction of this Court under Article 226 of the Constitution of India. He would seek to place reliance upon the judgment of the Hon'ble Apex Court in the case of ***Kisan Shankar Kathore Vs. Arun Dattatray Sawant and Others*** reported in ***(2014) 14 SCC 162*** where the Hon'ble Apex Court would held as follows:

"43. When the information is given by a candidate in the affidavit filed along with the nomination paper and objections are raised thereto questioning the correctness of the information or alleging that there is non-disclosure of certain important information, it may not be possible for the Returning Officer at that time to conduct a detailed examination. Summary enquiry may not suffice. The present case is itself an example which loudly demonstrates this. At the same time, it would not be possible for the Returning Officer to reject the nomination for want of verification about the allegations made by the objector. In such a case, when ultimately it is proved that it was a case of non-disclosure and either the



affidavit was false or it did not contain complete information leading to suppression, it can be held at that stage that the nomination was improperly accepted. Ms Meenakshi Arora, learned Senior Counsel appearing for the Election Commission, rightly argued that such an enquiry can be only at a later stage and the appropriate stage would be in an election petition as in the instant case, when the election is challenged. The grounds stated in Section 36(2) are those which can be examined there are then and on that basis the Returning Officer would be in a position to reject the nomination. Likewise, where the blanks are left in an affidavit, nomination can be rejected there and then. In other cases where detailed enquiry is needed, it would depend upon the outcome thereof, in an election petition, as to whether the nomination was properly accepted or it was a case of improper acceptance. Once it is found that it was a case of improper acceptance, as there was misinformation or suppression of material information, one can state that question of rejection in such a case was only deferred to a later date. When the Court gives such a finding, which would have resulted in rejection, the effect would be same, namely, such a candidate was not entitled to contest and the election is void. Otherwise, it would be an anomalous situation that even when criminal proceedings under Section 125-A of the Act can be initiated and the selected candidate is criminally prosecuted and convicted, but the result of his election cannot be questioned. This cannot be countenanced."

9. It is also germane to notice that in W.P. No.22012 of 2021 disposed of on 06.12.2021 had rejected



identical submissions of interference, at the stage, when the Elections were set to be held and directed the parties to avail of such remedy as available in law post the election.

"11. Nominations are filed under Section 30 of the Representation of People Act, 1951 ('Act' for short). Rejection and acceptance of nomination is under Section 33 of the Act.. Section 33A deals with the rights of the voter to know the complete information of a candidate who contests in the election. Section 36 deals with the scrutiny of the nomination. Section 100 deals with regard to grounds on which the elections can be declared to be void and reads as follows:

"100. Grounds for declaring election to be void.—^{6l}*(1) Subject to the provisions of sub-section (2) if*⁴*[the High Court] is of opinion—*

- a. that on the date of his election a returned candidate was not qualified, or was disqualified, to be chosen to fill the seat under the Constitution or this Act 7[***] 8[or the Government of Union Territories Act, 1963 (20 of 1963)]; or*
- b. that any corrupt practice has been committed by a returned candidate or his election agent or by any other person with the consent of a returned candidate or his election agent; or*
- c. that any nomination has been improperly rejected; or*
- d. that the result of the election, in so far as it concerns a returned candidate, has been materially affected—*



(i) by the improper acceptance or any nomination, or

(ii) by any corrupt practice committed in the interests of the returned candidate by an agent other than his election agent, or

(iii) by the improper reception, refusal or rejection of any vote or the reception of any vote which is void, or

(iv) by any non-compliance with the provisions of the Constitution or of this Act or of any rules or orders made under this Act,

²*[the High Court] shall declare the election of the returned candidate to be void.*

³*[(2)] If in the opinion of ²[the High Court], a returned candidate has been guilty by an agent other than his election agent, of any corrupt practice ⁴[***] but ²[the High Court] is satisfied—*

(a) that no such corrupt practice was committed at the election by the candidate or his election agent, and every such corrupt practice was committed contrary to the orders, and ⁸[without the consent], of the candidate or his election agent;

⁶*[***]*

*(c) that the candidate and his election agent took all reasonable means for preventing the commission of corrupt ⁷[***] practices at the election;*

and

*(d) that in all other respects the election was free from any corrupt ⁷[***] practice on the part of the candidate or any of his agents,*



then ²[the High Court] may decide that the election of the returned candidate is not void."

(Emphasis supplied)

Section 100(1)(d)(i) deals with one such ground on which an election could be declared void which is 'improper acceptance' of a nomination. The allegation in the petition is that the act of the first respondent is erroneous as he has improperly accepted the nomination of the fourth respondent. This is also a ground that can be urged by the petitioner in an election petition in the event the fourth respondent emerges victorious.

12. The contention of the learned Senior Counsel that further election should be stayed in the light of the interim order that is sought is unacceptable as it is trite that this Court would be loathe to pass any order that would stall the process of election and would consider passing any order that would carry forward the election process. The issue with regard to this Court interfering with election process once the calendar of events are notified by the Election Commission is no longer res integra in the light of the judgments rendered by the Apex Court in the case of **N.P. PONNUSWAMI V. RETURNING OFFICER, NAMAKKAL CONSTITUENCY - AIR 1952 SC 64** and later, in the case of **MOHINDER SINGH GILL V. CHIEF ELECTION COMM. - AIR 1978 SC 851**. Both the aforesaid judgments are followed in the subsequent judgment of the Apex Court in the case of **ELECTION COMMISSION OF INDIA V. ASHOK KUMAR¹**, wherein it has held as follows:

"29. Section 100 of the Representation of the People Act, 1951 needs to be read with Article 329(b), the former being a product of the latter. The sweep of Section 100 spelling out the legislative intent would assist us in determining the span of Article 329(b) though the fact remains that any legislative enactment cannot curtail or override the operation of a provision contained in the

¹ (2000) 8 SCC 216



Constitution. Section 100 is the only provision within the scope of which an attack on the validity of the election must fall so as to be a ground available for avoiding an election and depriving the successful candidate of his victory at the polls. The Constitution Bench in Mohinder Singh Gill case [(1978) 1 SCC 405 : AIR 1978 SC 851] (vide SCC p. 429, para 33) asks us to read Section 100 widely as "covering the whole basket of grievances of the candidates". Sub-clause (iv) of clause (d) of sub-section (1) of Section 100 is a "residual catch-all clause". Whenever there has been non-compliance with the provisions of the Constitution or of the Representation of the People Act, 1951 or of any Rules or Orders made thereunder if not specifically covered by any other preceding clause or sub-clause of the section it shall be covered by sub-clause (iv). The result of the election insofar as it concerns a returned candidate shall be set aside for any such non-compliance as the abovesaid subject to such non-compliance, also satisfying the requirement of the result of the election having been shown to have been materially affected insofar as a returned candidate is concerned. The conclusions which inevitably follow are: in the field of election jurisprudence, ignore such things as do not materially affect the result of the election unless the requirement of satisfying the test of material effect has been dispensed with by the law; even if the law has been breached and such breach satisfies the test of material effect on the result of the election of the returned candidate yet postpone the adjudication of such dispute till the election proceedings are over so as to achieve, in larger public interest, the goal of constituting a democratic body without interruption or delay on account of any controversy confined to an individual or group of individuals or single constituency having arisen and demanding judicial determination.

30. To what extent Article 329(b) has an overriding effect on Article 226 of the Constitution? The two Constitution Benches have held that Representation of the People Act, 1951 provides for only one remedy; that



remedy being by an election petition to be presented after the election is over and there is no remedy provided at any intermediate stage. The non obstante clause with which Article 329 opens, pushes out Article 226 where the dispute takes the form of calling in question an election (see para 25 of Mohinder Singh Gill case [(1978) 1 SCC 405 : AIR 1978 SC 851]). The provisions of the Constitution and the Act read together do not totally exclude the right of a citizen to approach the court so as to have the wrong done remedied by invoking the judicial forum; nevertheless the lesson is that the election rights and remedies are statutory, ignore the trifles even if there are irregularities or illegalities, and knock the doors of the courts when the election proceedings in question are over. Two-pronged attack on anything done during the election proceedings is to be avoided — one during the course of the proceedings and the other at its termination, for such two-pronged attack, if allowed, would unduly protract or obstruct the functioning of democracy.

31. The founding fathers of the Constitution have consciously employed use of the words "no election shall be called in question" in the body of Section 329(b) and these words provide the determinative test for attracting applicability of Article 329(b). If the petition presented to the Court "calls in question an election" the bar of Article 329(b) is attracted. Else it is not.

32. For convenience sake we would now generally sum up our conclusions by partly restating what the two Constitution Benches have already said and then adding by clarifying what follows therefrom in view of the analysis made by us hereinabove:

(1) If an election, (the term election being widely interpreted so as to include all steps and entire proceedings commencing from the date of notification of election till the date of declaration of



result) is to be called in question and which questioning may have the effect of interrupting, obstructing or protracting the election proceedings in any manner, the invoking of judicial remedy has to be postponed till after the completing of proceedings in elections.

(2) Any decision sought and rendered will not amount to "calling in question an election" if it subserves the progress of the election and facilitates the completion of the election. Anything done towards completing or in furtherance of the election proceedings cannot be described as questioning the election.

(3) Subject to the above, the action taken or orders issued by Election Commission are open to judicial review on the well-settled parameters which enable judicial review of decisions of statutory bodies such as on a case of mala fide or arbitrary exercise of power being made out or the statutory body being shown to have acted in breach of law.

(4) Without interrupting, obstructing or delaying the progress of the election proceedings, judicial intervention is available if assistance of the court has been sought for merely to correct or smoothen the progress of the election proceedings, to remove the obstacles therein, or to preserve a vital piece of evidence if the same would be lost or destroyed or rendered irretrievable by the time the results are declared and stage is set for invoking the jurisdiction of the court.

(5) The court must be very circumspect and act with caution while entertaining any election dispute though not hit by the bar of Article 329(b) but brought to it during the pendency of election proceedings. The court must guard against any attempt at retarding, interrupting, protracting or stalling of the election proceedings. Care has to be taken to see that there is no attempt to utilise the court's indulgence by filing a petition outwardly innocuous but essentially a subterfuge or pretext for achieving an ulterior



or hidden end. Needless to say that in the very nature of the things the court would act with reluctance and shall not act, except on a clear and strong case for its intervention having been made out by raising the pleas with particulars and precision and supporting the same by necessary material."

(Emphasis supplied)

In the light of the law laid down by the Apex Court in the aforesaid cases, the writ petition filed by the petitioner would not be maintainable insofar as the first prayer is concerned".

In light of the law laid down by the Hon'ble Apex Court and that of the coordinate bench, this Court would not lend its hands to the petitioner, in seeking a direction to Election Commission to remove the name of the respondent No.6 from the list of candidates for Chitradurga Parliamentary Constituency, leaving open to the petitioner to avail all the remedies available in law. The petition thus, stands rejected.

**Sd/-
JUDGE**

BVK; List No.: 1 Sl No.: 44